COMMONWEALTH OF MASSACHUSETTS
Appeals Court

No. 2022-P-0300

CASSANDRA FERREIRA,

Plaintiff-Appellee

v.

LAURAL CHARLAND & OTHERS,

Defendants-Appellant

On Appeal from the Housing Court Department, Western Division

July 6, 2022

REPLY BRIEF OF THE DEFENDANT-APPELLANT LAURAL CHARLAND

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I. ARGUMENT

Pursuant to Mass. R.A.P. 16(c), Laural Charland submits this reply brief to correct the inaccurate argument made in Landlord Cassandra Ferreira's appellee brief. Each of the Landlord's argument is wrong for the reasons explained below.

A. The Landlord is wrong: §8A's defense to possession is triggered by a violation of law, not on whether there is an amount due.

The Landlord argues that §8A is only triggered where the underlying claim produces "some amount, greater than zero, presently due and owing to the tenant by reason of a counterclaim permitted under the statute." Appellee's Brief, at 15. The Landlord is wrong.

As a preliminary matter, the Landlord's restatement of §8A, quoted above, demonstrates the error of her position. Nowhere in the statute does it state that there must be an amount due, or an amount "greater than zero," or that the amount must be "presently due and owing," or that the amount must be due by reason of a "counterclaim" alone. The Landlord's position is based on an inaccurate reading of the statute's plain language. Nor does the Landlord cite any cases in support of this reading.

§8A provides the following: "There shall be no recovery of possession under this chapter if the amount found by the court to be due the landlord equals or is less than the amount found to be due the tenant or occupant by reason of any

counterclaim or defense under this section." G.L. c.239, §8A, fifth par (emphasis added). "Equals" means net zero. In other words, no money is due. Again, under the plain meaning of G.L. c. 239, §8A, a tenant defeats the landlord's claim to possession merely by demonstrating a claim against or violation of law perpetrated by the landlord. The monetary accounting of competing claims between the two parties only has the effect of rebutting the defense to possession where the amount due the landlord exceeds that due the tenant and the tenant fails to pay the difference within a week. In other words, G.L. c. 239, §8A is a mechanism to defeat possession triggered simply by demonstrating an underlying claim or violation of law, with one very specific possibility of rebuttal.

Furthermore, the Landlord's narrow reading of §8A does not make any logical sense. A tenant cannot ever owe the landlord damages by reason of a tenant's claim or defense, and yet §8A provides that where a tenant does owe the landlord, the tenant must pay the amount due in order to win possession. Similarly, Ms. Charland's reading of §8A does not permit, as the Landlord suggests, that a tenant can lose the underlying defense or claim, and still win possession under §8A. See Appellee's Brief, at 16-17. §8A requires that a tenant first demonstrate the underlying defense or counterclaim before moving on to an accounting of monies due, if any.

B. The Landlord is wrong: There need not be any award of damages for a tenant to successfully trigger §8A's defense to possession.

The Landlord suggests that a tenant must prove damages in order to trigger protection under §8A. Appellee's Brief, at 17. The Landlord is wrong.

An award of damages is not necessary to trigger §8A's defense to possession. The plain language of §8A clearly provides that "the tenant or occupant shall be entitled to raise, by defense or counterclaim, any claim against the plaintiff relating to or arising out of such property, rental, tenancy, or occupancy…" G.L. c.239, §8A, first par (emphasis added). A defense, by definition, does not provide a party with potential damages. Yet, §8A, by its own terms, can be triggered by a defense. Therefore, §8A does not require any amount due in order to award possession to a tenant.

Again, a tenant does not need damages to trigger §8A's defense to possession. This is logically evident from the mechanism plainly laid out in the statute itself: If an amount is due the tenant or the amount is equal, the tenant wins possession automatically, and if the tenant owes the landlord any money, the tenant has an opportunity to pay that money to secure possession. G.L. c. 239, §8A, fifth par. Moreover, §8A expressly provides that any defense can be converted into a defense to possession, but defenses do not provide a party with potential damages

or reimbursement. *Id.* at first par. Thus, §8A nonetheless provides protection even where there are no damages.

Moreover, to clarify a few underlying facts, the Landlord never contested violation of the water statute. R.A. at 33-42. The parties both agreed that money was tendered for reimbursement and damages due to violation of the water statute. R.A. at 37-39. However, Ms. Charland, through counsel, maintained that her claim and defense under §8A were not waived by unilateral payment. R.A. at 36-37, 39. Finally, Landlord's counsel conceded that Ms. Charland did not affirmatively indicate intention to relinquish her claim and defense under §8A. R.A. at 41.

Second, while the Landlord argues that *Henry v. Bozzuto Mgmt. Co.* is inapplicable to the instant case, its holding is on point. The case stands for the proposition that a claim is not moot by reason of payment prior to trial. 98 Mass.App.Ct. 690, 701 (2020) ("In light of the undisputed fact that the defendant violated G.L. c.186, §15B(4)(iii), and given the defendant's tender, we conclude that judgment should still have entered for the Henrys on count II in the amount of the tender, $3,875, plus statutory interest."). Even more on point for the instant case are the cases that the Appeals Court relied on to come to that conclusion in *Henry v. Bozzuto Mgmt. Co.* In *Gammella v. P.F. Chang's China Bistro, Inc.*, the Supreme Judicial Court held that a defendant's tender of damages, without acceptance by plaintiff, did not moot the plaintiff's claim. 482 Mass. 1, 19, 120

N.E.3d 690, 705 (2019), citing *Barron Chiropractic & Rehabilitation, P.C. v. Norfolk & Dedham Group*, 469 Mass. 800, 805, 17 N.E.3d 1056 (2014) ("Under common-law principles of contract . . . a plaintiff may reject a defendant's disputed tender of payment, made after the date for payment has expired, and litigate its breach of contract claim to completion."). In *Campbell-Ewald Co. v. Gomez*, the United States Supreme Court held the following:

> When a plaintiff rejects such an offer – however good the terms – her interest in the lawsuit remains just what it was before. And so too does the court's ability to grant her relief. An unaccepted settlement offer – like any unaccepted contract offer – is a legal nullity, with no operative effect . . . [s]o assuming the case was live before – because plaintiff had a stake and the court could grant relief – the litigation carries on, unmooted. 577 U.S. 153, 162, 136 S.Ct. 663, 670 (2016), citing *Genesis Healthcare Corp. v. Symczyk*, 569 U.S. 66, 81, 133 S.Ct. 1523, 1533-34 (2013) (Kagan, dissenting).

In the instant case, Ms. Charland was entitled to further relief beyond simply reimbursement and damages: possession of her home pursuant to §8A. For this same reason, the Landlord's reliance on *Kattar v. Demoulas*, is misplaced. 433 Mass. 1, 15-16 (2000); Appellee's Brief, at 18. The issue here is not whether Ms. Charland was "made whole" but whether she retains a defense to possession, relief

that exceeds monetary reimbursement or damages. Under the plain meaning of §8A, Ms. Charland retains that defense.

C. The Landlord is wrong: §8A does not discourage landlords from promptly correcting violations of law.

The Landlord argues that if §8A is read to award possession to a tenant even where no money is due the tenant, §8A would therefore discourage a landlord from remedying its own violations of law. Appellee's Brief, at 22. The Landlord is wrong.

First, as the court stated in *Meikle v. Nurse*, §8A is designed to protect tenants, not landlords. 474 Mass. 207, 214 (2016). But it does not burden the landlord with a tenancy for life; rather it merely allows a tenant to defeat possession in one summary process action. *Id.*

Second, §8A encourages landlords not only to quickly remedy violations of law, but to ensure compliance from the beginning of the tenancy so as to avoid a §8A defense in a future summary process case.

Third, the Landlord also argues that Ms. Charland's position disincentivizes settlement. Again, it does no such thing. It merely changes the relative positions of the parties within the settlement negotiations – to the landlord's detriment, yes – but it does not disincentivize settlement per se, just possibly the preferred

settlement of the landlord. But this is not a reason to read §8A any other way than as it is plainly written or intended. *Meikle v. Nurse*, at 214.

D. The Landlord is wrong: The security deposit statute is distinguishable from the instant case.

The Landlord argues that the Court should follow the holding in Cruz v. Norat- Reyes, to wit, that reimbursement before trial moots any triggering of §8A. Appellee's Brief, at 23-24. The Landlord is wrong.

The security deposit statute is an exception because the statute itself expressly grants this "cure" opportunity. General Laws c.186, §15B(6) provides that a landlord "forfeits his right to retain any portion of the security deposit for any reason" where the landlord fails to comply with certain requirements of the same statute. But a tenant is not entitled to damages unless and until the landlord fails to comply with the forfeiture and return the deposit upon demand, as provided in §15B(7). *Castenholz v. Caira*, 21 Mass.App.Ct. 758, 490 N.E.2d 494 (1986) (holding that "subsection (7) imposes the treble damages" not for violation of the requirements in subsection (3), but for retaining the deposit after the landlord's forfeit thereof), citing *McGrath v. Mishara*, 386 Mass. 74, 85, 434 N.E.2d 1215 (1982); *Taylor v. Beaudry*, 75 Mass.App.Ct. 411, 914 N.E.2d 931 (2009) (tenant is entitled to treble damages only where landlord fails to return the forfeited deposit

upon tenant's demand). This "cure" right or safe harbor provision does not exist outside the explicit language of the statute governing security deposits.

In *Cruz v. Norat-Reyes*, the Housing Court, Western Division, held that upon a landlord's payment of statutory damages due under G. L. c.186, §15B, following a demand for return by the tenant, the tenant cannot successfully assert a defense under §8A. *Cruz v. Norat-Reyes*, 17-SP-181, March 1, 2017 (Housing Ct., Western Div.) (Fields, J.) (holding that return of the security deposit upon demand prevents the tenant from claiming a violation and damages under G. L. c.186, §15B, and therefore makes the defense and counterclaim ineligible to invoke G. L. c.239, §8A).

The Housing Court in Cruz relied on the Appeals Court's holding in *Castenholtz*, but *Castenholtz* was not a summary process action wherein the tenant raised a §8A defense based on a violation of the security deposit statute. It was a civil case in which a tenant sued his former landlord for damages alleging violation of the security deposit statute. The Appeals Court held that damages may be awarded only where the landlord fails to return the deposit upon demand, as the statute provides. As a matter of statutory interpretation, that holding is sound. But here, the issue is whether a tenant may invoke a defense to possession under §8A based on an underlying violation of law in addition to any potential award of damages. However, whatever one's position is as to the holding in Cruz – and our

position is that it incorrectly applies §8A to the security deposit statute – the instant case is distinguishable and this Court need not wade into the holding in Cruz. Again, no such cure opportunity exists in the water statute, G.L. c.186, §22.

To be clear, Ms. Charland did not argue in her Brief that she agrees with the holding in Cruz. She argued strictly that Cruz is distinguishable from the instant case. Appellant's Brief at 16-17.

E. The Landlord is wrong: Ms. Charland never waived or relinquished her claim or defense to possession under §8A upon the Landlord's unilateral tender of payment.

The Landlord argues that Ms. Charland accepted reimbursement without a reservation of rights and therefore the underlying violation of law was satisfied and resolved. Appellee's Brief, at 25-26. The Landlord is wrong.

First, the Landlord offered no admissible evidence at trial that Ms. Charland "accepted" payment in settlement or satisfaction of her claim or defense to possession under §8A. R.A. at 41. In fact, the Landlord conceded that there was never a "meeting of the minds" regarding settlement of Ms. Charland's claim or defense under §8A. *Id.* Furthermore, while the parties agreed that money was tendered for reimbursement and damages due to violation of the water statute, Ms. Charland, through counsel, maintained that her claim and defense under §8A were not waived by such unilateral payment. R.A. at 36-37, 39.

Second, the record contains no evidence that Ms. Charland ever affirmatively agreed to waive any claim or defense or intended to relinquish any right. An agreement requires "an objective manifestation of mutual assent, i.e. what is often referred to as 'meeting of the minds.' *Nortek, Inc. v. Liberty Mut. Ins. Co.*, 65 Mass.App.Ct. 764 (2006), quoting *Radecki v. Amoco Oil Co.*, 858 F.2d 397, 400 (8th Cir. 1988); *I & R Mechanical, Inc. v. Hazelton Mfg. Co.*, 62 Mass.App.Ct. 452 (2004).

The record contains no evidence indicating that the parties negotiated and agreed (i.e., reached a "meeting of the minds") about a "bargained-for exchange" of money in exchange for a release of any claims or defenses. In fact, the record contains an admission by the Landlord that there was no meeting of the minds as to settlement of Ms. Charland's claim or defense. R.A. at 36-37, 39.

Waiver is "the 'intentional relinquishment of a known right.'" *BourgeoisWhite, LLP v. Sterling Lion, LLC*, 91 Mass.App.Ct. 114, 119 (2017), quoting *Mach. Works, Inc. v. Machine & Elec. Consultants, Inc.*, 444 Mass. 768, 771 (2005); *Normandin v. Eastland Partner, Inc.*, 68 Mass.App.Ct. 377, 388 (2007), quoting *Niagara Fire Ins. Co. v. Lowell Trucking Corp.*, 316 Mass. 652, 657 (1944). "Waiver may be express or 'inferred from a party's conduct and the surrounding circumstances.'" *Id.*

Here, Ms. Charland did not waive her counterclaim under G.L. c.186, §22 or her defense to possession under G.L. c.239, §8A. She did not expressly waive these rights in any writing or otherwise, nor did she take any action from which waiver of her rights could be inferred. Ms. Charland only acknowledged on the record that the Landlord tendered payment for damages of the underlying violation of G.L. c.186, §22.

II. CONCLUSION

For the reasons stated in this brief, it should be apparent that Ms. Charland raised a meritorious defense to possession pursuant to §8A and the Landlord should not have been awarded a judgment of possession. Tenant Laural Charland requests that this Court reverse the entry of judgment for Landlord Cassandra Ferreira, and enter judgment for possession in favor of Laural Charland.

Respectfully Submitted,
Laural Charland,
By her counsel,

COMMUNITY LEGAL AID

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Dated: July 6, 2022

ADDENDUM

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Order After Trial, June 25, 2021

Docket from Case No. 20-SP-1676 (August 30, 2021 Judgment)

G.L. c.239, §8A

G.L. c. 186, §22

Cruz v. Norat-Reyes, 17-SP-181, March 1, 2017

Order After Trial, June 25, 2021

COMMONWEALTH OF MASSACHUSETTS

TRIAL COURT

Hampden, ss: HOUSING COURT DEPARTMENT

WESTERN DIVISION

CASE NO. 20-SP-1676

CASSANDRA FERREIRA,

Plaintiff,

v.

ORDER

LAURAL CHARLAND, JASON CHARLAND, and JAMES VASQUEZ,

Defendants.

This matter came before the court for hearing on June 22, 2021, at which the plaintiff landlord appeared with counsel and the defendant tenant Laural Charland appeared with counsel along with co-defendant Jason Charland who appeared prose. After said hearing, the following order shall enter:

1. Preliminary Matter: Water Charges under G.L. c.186, s.22: There is no question that the tenants asserted a claim that the landlord violated G.L. c.186, s.22. and there is also no question that such claim triggers "violation of any other law" under G. L. c. 239, s.8A. The question posed by this case is whether after the landlord tendered full compensation to the tenant for her claim under G.L. c.186, s.22 can she still assert said claim at trial to trigger the application of G.L c. 239, s.8A as a defense to possession. Given that the landlord tendered all the funds for the damages asserted under that claim and that they were knowingly accepted by the tenants without any reservation of rights, such tender and acceptance satisfied and resolved the tenants' claim under G.L. c.186, s.22 and it can not be used to trigger a defense to possession under G.L. c.239, s.8A.

2. G.L. c.239, s.9: The parties were also heard on the tenants' request that judgment be stayed in accordance with G.L. c.239, s.9. Pursuant to that statute, the court is directed to hear from all parties and achieve an order and an extension of time, if warranted, that is "just and reasonable". This is often a difficult task for a

court but the facts of this matter make it extremely difficult as both sides present very compelling needs and circumstances.

3. The tenants (Laural Charland and her brother Jason Charland) are both disabled and have limited income from Social Security benefits and food stamps. Ms. Charland testified credibly of her very extensive housing search in all towns around and between Ludlow and Agawam, other than avoiding inner-city locations.

4. The landlord also finds herself in dire straits, mostly residing on a couch in her parents' basement for a very protracted time and with no other options available to her until she can re-possess the subject premises for her own residence. Ms. Ferreira also reported to the court that she has a medical condition that will require her to have a procedure at the end of August, 2021 and will require a slow recovery thereafter—of course, a recovery hopefully not on her parents' couch.

5. Order: In accordance with G.L. c.239, s.9, judgment shall be stayed until September 1, 2021 and the tenants have until August 31, 2021 to vacate the premises and are required to pay use and occupancy through their vacating the unit.

So entered this 25th day of June, 2021.

Robert Fields, Associate Justice

Cc: Court Reporter

Docket from Case No. 20-SP-1676 (August 30, 2021 Judgment)

Case Details, Massachusetts Trial Court. 20H79SP001676 Ferreira, Cassandra vs. Charland, Laural et al.

Case Type: Housing Court Summary Process. Case Status: Active. File Date: 12/14/2020. DCM Track: Initiating Action: Efiled SP Summons and Complaint - No Cause. Status Date: 12/14/2020. Case Judge: Next Event: Property Address: 51 Ray Street, Ludlow MA 01056.

Party Attorney: Attorney Farber, Esq., Lawrence J. Bar Code 547966. Address: Farber and Lindley LLC, 30 Boltwood Walk Suite 101, Amherst, MA 01002. Phone Number (413)256-8429. Party Attorney: Attorney Fonseca, Esq., Gabriel. Bar Code 706870. Address: Community Legal Aid, 1 Monarch Place Suite 400, Springfield, MA 01144. Phone Number (413)686-9007. Party Attorney: Pro Se. Bar Code PROPER.

Party Information: Ferreira, Cassandra, Plaintiff. Charland, Laural, Defendant. Charland, Jason, Defendant. Party Attorney: Pro Se. Bar Code PROPER. Vasquez, James, Defendant.

Judgments (Date, Type, Method, For, Against): 08/30/2021 Final Judgment, Finding, Ferreira, Cassandra, Vasquez, James.

Events: 03/05/2021 09:00 AM, Session 3, DO NOT USE, Status Hearing, Continued. 03/17/2021 09:00 AM, Session 3, DO NOT USE, Housing Specialist

Mediation, Held. 05/11/2021 09:00 AM, Session 3, Western Housing Court, Pretrial Conference, Held. 06/01/2021 09:00 AM, Session 3, Western Housing Court, Jury Trial, Off the list. 06/02/2021 09:00 AM, Session 3, Western Housing Court, Jury Trial in Progress, Continued, Off the list. 06/17/2021 02:00 PM, Session 3, DO NOT USE, Housing Specialist Mediation, Held. 06/21/2021 10:00 AM, Session 3, DO NOT USE, Summary Process Trial, Held. 08/26/2021 11:00 AM, Session 3, DO NOT USE, Motion Hearing, Denied. 10/07/2021 09:00 AM, Session 3, DO NOT USE, Hearing, Rescheduled. 10/13/2021 09:00 AM, Session 3, DO NOT USE, Hearing, Held.

Docket Information:

12/14/2020 Summary Process: MGL Chapter 185C Section 19; Chapter 262 Section 2 Receipt: 120087 Date: 12/14/2020.

12/14/2020 SURCHARGE 185C: Entry of Action filed (Section 466 - M.G.L. c. 185C, §19) SURCHARGE Receipt: 120087 Date: 12/14/2020.

12/14/2020 Entry Package - Notice to Quit (Ref. 1).

12/14/2020 Entry Package - Affidavit of Compliance (Ref. 2).

12/14/2020 Affidavit Concerning CDC Order for Plaintiff (Ref. 3).

12/14/2020 Entry Package - SP Summons and Complaint - No Cause (Ref. 4).

01/04/2021 Entry Package - SP Summons and Complaint - Original (Ref. 5).

01/05/2021 Scheduled. Event: Status Hearing. Date: 03/05/2021 Time: 09:00 AM. Result: Continued.

01/05/2021 The following court event has been scheduled: 03/05/2021 09:00 AM Status Hearing. The event will be held via Video Conference and the virtual conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

01/05/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Housing Specialist Status Conference was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC 30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant: Laural Charland 51 Ray Street, Ludlow, MA 01056. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

03/02/2021 Answer and Counterclaim of Laural Charland filed. (Ref. 6).

03/02/2021 Defendant Discovery Requests, Interrogatories & Document Requests (Ref. 7).

03/02/2021 Answer and Counterclaim of James Vasquez filed. (Ref. 8).

03/02/2021 Defendant Discovery Requests, Interrogatories & Document Requests (Ref. 9).

03/02/2021 Jury claim of Laural Charland.

03/02/2021 Jury claim of James Vasquez.

03/05/2021 Alternative Dispute Resolution Outcome. Referral Date: 03/05/2021. Referral Source: Referral Event: Status Hearing Mar 5, 2021 9:00:00 AM. Referral Status: Did Not Enter Process. Referral Specialist: Roche, Michael.

03/05/2021 Event Resulted: Status Hearing scheduled on: 03/05/2021 09:00 AM. Has been: Continued. For the following reason: Both Parties Request. Unassigned, Presiding.

03/09/2021 Scheduled. Event: Housing Specialist Mediation. Date: 03/17/2021 Time: 09:00 AM. Result: Held.

03/09/2021 The following court event has been scheduled: 03/17/2021 09:00 AM Housing Specialist Mediation. The event will be held via video conference and the virtual conference information is: Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

03/09/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Housing Specialist Status Conference was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC 30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant: Laural Charland 51 Ray Street, Ludlow, MA 01056. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

03/17/2021 Alternative Dispute Resolution Outcome. Referral Date: 03/17/2021. Referral Source: Referral Event: Housing Specialist Mediation Mar 17, 2021 9:00:00 AM. Referral Status: Closed - Not Settled. Referral Specialist: Gonzalez, Mariann L.

03/17/2021 Event Resulted: Housing Specialist Mediation scheduled on: 03/17/2021 09:00 AM. Has been: Held. Hon. Robert G Fields, Presiding.

03/19/2021 Pretrial Order (Ref. 10). Judge: Cunha, Kara.

03/19/2021 Scheduled. Judge: Fields, Hon. Robert G. Event: Pretrial Conference. Date: 05/11/2021 Time: 09:00 AM. Result: Held.

03/19/2021 Scheduled. Event: Jury Trial. Date: 06/01/2021 Time: 09:00 AM. Result: Off the list.

05/05/2021 Pre-trial Memorandum filed. Cassandra Ferreira (Ref. 11).

05/05/2021 Plaintiff's First Motion in Limine (Ref. 12).

05/05/2021 Plaintiff's Second Motion in Limine (Ref. 13).

05/05/2021 Cassandra Ferreira's Voir Dire of prospective jurors filed (Ref. 14).

05/05/2021 Pretrial Submission of Cassandra Ferreira, Statement to Jury (Ref. 15).

05/10/2021 Notice of limited appearance for Laural Charland, by Gabriel Fonseca (Ref. 16).

05/11/2021 Attorney Appearance. On this date Gabriel Fonseca, Esq. added as Limited Assistance Representation for Defendant Laural Charland (Ref. 17).

05/11/2021 Event Resulted: Jury Trial scheduled on: 06/01/2021 09:00 AM. Has been: Off the list. For the following reason: Court Action. Hon. Robert G Fields, Presiding.

05/11/2021 Event Resulted: Jury Trial in Progress, Continued scheduled on: 06/02/2021 09:00 AM. Has been: Off the list. For the following reason: Court Action. Hon. Robert G Fields, Presiding.

05/11/2021 Scheduled. Judge: Fields, Hon. Robert G. Event: Summary Process Trial. Date: 06/21/2021 Time: 10:00 AM. Result: Held.

05/11/2021 Scheduled. Judge: Unassigned. Event: Housing Specialist Mediation. Date: 06/17/2021 Time: 02:00 PM. Result: Held.

05/11/2021 Order mailed. Judge: Fields, Hon. Robert G (Ref. 18).

05/11/2021 The following court event has been scheduled: 06/21/2021 10:00 AM Summary Process Trial. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666. Judge: Fields, Hon. Robert G.

05/11/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Virtual Court Hearing was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC

30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant, Attorney: Gabriel Fonseca, Esq. Community Legal Aid 1 Monarch Place Suite 400, Springfield, MA 01144. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

05/11/2021 The following court event has been scheduled: 06/17/2021 02:00 PM Housing Specialist Mediation. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

05/11/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Virtual Court Hearing was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC 30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant, Attorney: Gabriel Fonseca, Esq. Community Legal Aid 1 Monarch Place Suite 400, Springfield, MA 01144. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

05/11/2021 Jury Waiver filed. by deft Laural Charland (Ref. 19).

05/11/2021 Event Resulted: Pretrial Conference scheduled on: 05/11/2021 09:00 AM. Has been: Held. Hon. Robert G Fields, Presiding.

05/26/2021 Memorandum of Cassandra Ferreira on water & Sewer (Ref. 20).

05/28/2021 Proposed Exhibit Filed by Cassandra Ferreira (Ref. 21).

06/01/2021 Memorandum of Laural Charland (Ref. 22).

06/01/2021 Affidavit. Applies To: Charland, Laural (Defendant) (Ref. 23).

06/01/2021 Proposed Exhibit Filed by Laural Charland (Ref. 24).

06/17/2021 Event Resulted: Housing Specialist Mediation scheduled on: 06/17/2021 02:00 PM. Has been: Held. Comments: mediation failed- MKR. Unassigned, Presiding.

06/21/2021 Taken under advisement with RGF.

06/21/2021 Event Resulted: Summary Process Trial scheduled on: 06/21/2021 10:00 AM. Has been: Held. Hon. Robert G Fields, Presiding. Appeared: Plaintiff, Lawrence J Farber, Esq.; Defendant Laural Charland, Gabriel Fonseca, Esq., Limited Assistance Representation; Defendant Jason Charland.

06/25/2021 Order. Judge: Fields, Hon. Robert G (Ref. 25).

08/20/2021 Motion to stop physical eviction (Ref. 26).

08/24/2021 Scheduled. Judge: Doherty, Michael J. Event: Motion Hearing. Date: 08/26/2021 Time: 11:00 AM. Result: Denied.

08/24/2021 The following court event has been scheduled: 08/26/2021 11:00 AM Motion Hearing. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

08/26/2021 Event Resulted: Motion Hearing scheduled on: 08/26/2021 11:00 AM. Has been: Denied. For the following reason: Court Action. Hon. Robert G Fields, Presiding.

08/30/2021 Endorsement order: Motion denied and judgment to issue; execution in due course. Judge: Fields, Hon. Robert G (Ref. 27).

08/30/2021 Judgment issued: Final Judgment, Finding. Presiding: Hon. Robert G Fields. Judgment For: Cassandra Ferreira. Judgment Against: Laural Charland, Jason Charland, James Vasquez. Terms of Judgment: Jdgmnt Date: 08/30/2021 (Ref. 28).

09/10/2021 Notice of Appeal by Laural Charland from Judgment dated 08/30/2021 (Ref. 29).

09/10/2021 Defendant Motion to Set or Waive Appeal Bond (Ref. 30).

09/22/2021 Affidavit of Indigency FILED (Ref. 31).

09/23/2021 Certification that transcript was ordered - but exhibit not attached (Ref. 32).

10/06/2021 Scheduled. Event: Hearing. Date: 10/07/2021 Time: 09:00 AM. Result: Rescheduled.

10/06/2021 The following court event has been scheduled: 10/07/2021 09:00 AM Hearing. The event will be held via video conference and the conference

information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666. Hearing on motion to set or waive appeal bond.

10/06/2021 Notice of withdrawal of limited appearance by Gabriel Fonseca, Esq. for Laural Charland (Ref. 33).

10/07/2021 Notice of limited appearance for Laural Charland (Ref. 34).

10/07/2021 Affidavit (Ref. 35).

10/07/2021 Event Resulted: Hearing scheduled on: 10/07/2021 09:00 AM. Has been: Rescheduled. For the following reason: Court Action. Comments: to be heard by Judge Fields. Hon. Jeffrey M Winik, Presiding.

10/07/2021 Scheduled. Judge: Fields, Hon. Robert G. Event: Hearing. Date: 10/13/2021 Time: 09:00 AM. Result: Held.

10/07/2021 The following court event has been scheduled: 10/13/2021 09:00 AM Hearing. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

10/13/2021 Event Resulted: Hearing scheduled on: 10/13/2021 09:00 AM. Has been: Held. Hon. Robert G Fields, Presiding. Appeared: Plaintiff, Lawrence J Farber, Esq.; Defendant, Gabriel Fonseca, Esq., Limited Assistance Representation; Defendant Jason Charland; Defendant James Vasquez.

10/19/2021 Order re: appeal bond and waiver of costs. Judge: Fields, Hon. Robert G (Ref. 36).

03/16/2022 Order notifying parties about appeal issue. Judge: Fenn, Laura J. (Ref. 37).

03/16/2022 Proposed Exhibit Filed by Laural Charland to certification of transcript filed on September 23, 2021 (Ref. 38).

03/16/2022 Transcript of 6-21-21 hearing filed by Laural Charland (Ref. 39).

03/17/2022 Notice of Assembly of Record on Appeal sent to all counsel of record (Ref. 40).

03/17/2022 Transcript of hearing filed.

Case Disposition: Findings and Order, 06/25/2021.

G.L. c.239, §8A

§ 8A. Rent withholding; grounds; amount claimed; presumptions and burden of proof; procedures.

<Section impacted by 2020, 65, Secs. 3 and 6 effective April 20, 2020 and 2020, 257, Sec. 1, as amended by 2021, 20, Secs. 12 to 15, 29 and 30 and 2022, 42, Sec. 30 effective December 31, 2020 relating to eviction protections in order to address disruptions caused by the outbreak of COVID-19.>

In any action under this chapter to recover possession of any premises rented or leased for dwelling purposes, brought pursuant to a notice to quit for

nonpayment of rent, or where the tenancy has been terminated without fault of the tenant or occupant, the tenant or occupant shall be entitled to raise, by defense or counterclaim, any claim against the plaintiff relating to or arising out of such property, rental, tenancy, or occupancy for breach of warranty, for a breach of any material provision of the rental agreement, or for a violation of any other law. The amounts which the tenant or occupant may claim hereunder shall include, but shall not be limited to, the difference between the agreed upon rent and the fair value of the use and occupation of the premises, and any amounts reasonably spent by the tenant or occupant pursuant to section one hundred and twenty-seven L of chapter one hundred and eleven and such other damages as may be authorized by any law having as its objective the regulation of residential premises.

Whenever any counterclaim or claim of defense under this section is based on any allegation concerning the condition of the premises or the services or equipment provided therein, the tenant or occupant shall not be entitled to relief under this section unless: (1) the owner or his agents, servants, or employees, or the person to whom the tenant or occupant customarily paid his rent knew of such conditions before the tenant or occupant was in arrears in his rent; (2) the plaintiff does not show that such conditions were caused by the tenant or occupant or any other person acting under his control; except that the defendant shall have the burden of proving that any violation appearing solely within that portion of the

premises under his control and not by its nature reasonably attributable to any action or failure to act of the plaintiff was not so caused; (3) the premises are not situated in a hotel or motel, nor in a lodging house or rooming house wherein the occupant has maintained such occupancy for less than three consecutive months; and (4) the plaintiff does not show that the conditions complained of cannot be remedied without the premises being vacated; provided, however, that nothing in this clause shall be construed to deprive the tenant or occupant of relief under this section when the premises are temporarily vacated for purposes of removal or covering of paint, plaster, soil or other accessible materials containing dangerous levels of lead pursuant to section one hundred and ninety-seven of chapter one hundred and eleven.

Proof that the premises are in violation of the standard of fitness for human habitation established under the state sanitary code, the state building code, or any other ordinance, by-law, rule or regulation establishing such standards and that such conditions may endanger or materially impair the health, safety or well-being of a person occupying the premises shall create a presumption that conditions existed in the premises entitling the tenant or occupant to a counterclaim or defense under this section. Proof of written notice to the owner or his agents, servants, or employees, or to the person to whom the tenant or occupant customarily paid his rent, of an inspection of the premises, issued by the board of health, or in the city

of Boston by the commissioner of housing inspection, or by any other agency having like powers of inspection relative to the condition of residential premises, shall create a presumption that on the date such notice was received, such person knew of the conditions revealed by such inspection and mentioned in such notice. A copy of an inspection report issued by any such agency, certified under the penalties of perjury by the official who inspected the premises, shall be admissible in evidence and shall be prima facie evidence of the facts stated therein.

There shall be no recovery of possession pursuant to this chapter pending final disposition of the plaintiff's action if the court finds that the requirements of the second paragraph have been met. The court after hearing the case may require the tenant or occupant claiming under this section to pay to the clerk of the court the fair value of the use and occupation of the premises less the amount awarded the tenant or occupant for any claim under this section, or to make a deposit with the clerk of such amount or such installments thereof from time to time as the court may direct, for the occupation of the premises. In determining said fair value, the court shall consider any evidence relative to the effect of any conditions claimed upon the use and occupation of residential premises. Such funds may be expended for the repair of the premises by such persons as the court after a hearing may direct, including if appropriate a receiver appointed as provided in section one hundred and twenty-seven H of chapter one hundred and eleven. When all of the

conditions found by the court have been corrected, the court shall direct that the balance of funds, if any, remaining with the clerk be paid to the landlord. Any tenant or occupant intending to invoke the provisions of this section may, after commencement of an action under this chapter by the landlord, voluntarily deposit with the clerk any amount for rent or for use and occupation which may be in dispute, and such payments shall be held by the clerk subject to the provisions of this paragraph.

There shall be no recovery of possession under this chapter if the amount found by the court to be due the landlord equals or is less than the amount found to be due the tenant or occupant by reason of any counterclaim or defense under this section. If the amount found to be due the landlord exceeds the amount found to be due the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having received written notice from the court of the balance due, pays to the clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section. In such event, no judgment shall enter until after the expiration of the time for such payment and the tenant has failed to make such payment. Any such payment received by the clerk shall be held by him subject to the provisions of the preceding paragraph.

Any provision of any rental agreement purporting to waive the provisions of this section shall be deemed to be against public policy and void. The provisions of section two A and of section eighteen of chapter one hundred and eighty-six shall apply to any tenant or occupant who invokes the provisions of this section.

Credits: Added by St.1965, c. 888. Amended by St.1967, c. 420, § 1; St.1969, c. 355; St.1973, c. 471; St.1973, c. 1007, § 3; St.1974, c. 269, §§ 1, 2; St.1975, c. 467, § 3; St.1977, c. 963; St.1979, c. 198, §§ 1, 2; St.1981, c. 133; St.1987, c. 773, § 15.

G.L. c. 186, §22

§ 22. Definitions; submeter installation; testing; water use charges; public housing development exemption.

Effective: March 16, 2005.

<Section impacted by 2020, 65, Secs. 3 and 6 effective April 20, 2020 relating to suspension of evictions in order to address disruptions caused by the outbreak of COVID-19.>

(a) For the purposes of this section the following words shall have the following meanings:–

“Common area”, any portion of a building with more than 1 dwelling unit that is not incorporated within a dwelling unit.

"Customer service charge", a fixed amount charged by a city or town or water company for providing water to a building.

"Dwelling unit", any house or building, or portion thereof, that is occupied, designed to be occupied, or is rented, leased or hired out to be occupied, as a home or residence of one or more persons.

"Landlord", the owner, lessor or sublessor of a dwelling unit, the building of which it is a part, or the premises wherein a customer receives water service through metered measurement.

"Submetering", use of a meter by a landlord who receives water from a water company, which meter measures water supplied to a dwelling unit to enable the landlord to charge the tenant of the dwelling unit separately for water usage, or which meter measures water supplied to a common area.

"Water company", a company, as defined in section 1 of chapter 165 or a municipal utility or any other waterworks system owned, leased, maintained, operated, managed or controlled by any unit of local government under any general or special law, which company, utility or system supplies water to a landlord through metered measurement. Any landlord imposing charges on tenants or otherwise engaging in any activity permitted under this section shall not be deemed thereby to be functioning as a water company as defined herein or to be subject to any laws or regulations regulating any such company.

"Water conservation device", for all showers, shower stalls, shower compartments or shower baths, a low-flow showerhead which shall have a maximum flow rate not exceeding 2 ½ gallons of water per minute, for all faucets a maximum flow rate not exceeding 2 and 2/10 gallons of water per minute and for all water closets, ultra-low-flush water closets not exceeding 1 and 6/10 gallons of water per flush, contained within a dwelling unit.

(b) A landlord may cause to be installed by a plumber licensed in the commonwealth, at the expense of such landlord, submetering equipment in the landlord's building to measure the quantity of water provided for the exclusive use of each dwelling unit, provided that such equipment meets the standards of accuracy and testing of the American Water Works Association or a similar accredited association; and provided further, that a submeter is installed for each dwelling unit in the building and for the common areas of the building, so that all water used in a building is measured by both a primary meter and a submeter.

(c) A landlord may charge a tenant of a dwelling unit for water usage as measured through the use of submetering equipment only in accordance with this section and only upon the landlord certifying that the dwelling unit is in compliance with this section to a board of health, health department or other municipal agency or department charged with enforcement of the state sanitary code. All provisions of this section allowing landlords to charge tenants for water

usage shall also be deemed to apply to sewer service charges calculated by means of the same primary meter or submeter. Certification by the landlord shall be provided under the penalties of perjury and shall include a statement that: 1) the dwelling unit is eligible for the imposition on the tenant of a charge for water usage in accordance with paragraph (d); 2) all showerheads, faucets, and water closets in the dwelling unit are water conservation devices and that all water closets were installed by a licensed plumber; and 3) the water submeter measuring the use of water in the dwelling unit was installed by a licensed plumber and is in compliance with the standards of accuracy and testing referenced in subsection (b).

(d) A dwelling unit shall become eligible for the imposition on the tenant of a charge for water usage only upon the commencement of a new tenancy in such dwelling unit and only if: (1) the dwelling unit is being occupied for the first time; or (2) the previous tenant vacated the dwelling unit voluntarily, or was evicted from the dwelling unit for nonpayment of rent or for breach of lease or noncompliance with a rental agreement for the dwelling unit; provided, however, that a dwelling unit shall not be deemed eligible for submetering if the new tenant relocated involuntarily from another dwelling unit in the same building or building complex; and provided further, that once a tenant of a dwelling unit has been charged for the use of water in accordance with this section, such dwelling unit shall remain eligible for the imposition of a charge for the use of water in all

subsequent tenancies; and provided further, that a licensed plumber employed by or under contract with the landlord may perform any work in a dwelling unit as is required by this section to allow for the imposition on a tenant of a charge for the use of water, even if such unit is occupied by a tenant upon whom a charge for the use of water cannot be imposed.

(e) A landlord may not charge the tenant of a dwelling unit separately for water usage measured by a submeter, nor allow such tenant to be so charged, unless the submeter measures only water that is supplied for the exclusive use of the particular dwelling unit and only to an area within the exclusive possession and control of the tenant of such dwelling unit and does not measure any water usage for any portion of the common areas or by any other party or dwelling unit; provided further, that a landlord shall not charge such tenant for water supplied through a submeter to the dwelling unit prior to the landlord installing fully functional water conservation devices for all faucets, showerheads and water closets in the dwelling unit; and provided further, that the landlord shall ensure that such water conservation devices are installed and functioning properly at the commencement of each subsequent tenancy in such dwelling unit.

(f) A landlord may not charge the tenant separately, nor allow tenant to be charged separately, for submetered water usage unless the tenant has signed a written rental agreement that clearly and conspicuously provides for such separate

charge and that fully discloses in plain language the details of the water submetering and billing arrangement between the landlord and the tenant. Each bill for submetered water usage shall clearly set forth all charges and all other relevant information, including, but not limited to, the current and immediately preceding submeter readings and the date of each such reading, the amount of water consumed since the last reading, the charge per unit of water, the total charge and the payment due date. Such charges shall be billed to the tenant in at leased as many periods as the landlord is billed by the water company providing such water to the building or such payments may be made on a monthly payment schedule as agreed to in the written rental agreement; provided, however, that if the landlord bills the tenant on a monthly basis, payment of the bill by the tenant shall be due 15 days after the date the bill is mailed to the tenant, but if the landlord bills the tenant at intervals greater than 1 month, payment of the bill by the tenant shall be due 30 days after the date the bill is mailed to the tenant. If the tenant fails to make such payment, such nonpayment shall be a material breach of the written rental agreement. Violation of such breach may be cured by payment of the water charges in full prior to any court hearing to adjudicate such violation.

(g) A landlord shall determine a calculated cost per unit of water consumption by dividing the total amount of any bill or invoice provided to the landlord from the water company for water usage, the customer service charge and

taxes, but not including any interest for the late payment, penalty fees or other discretionary assessments or charges, for all water provided to the premises through the water company meter in that billing period, by the total amount of water consumption for the entire premises. The total amount charged separately to each submetered dwelling unit for water usage for any billing period shall not exceed such calculated cost per unit of water multiplied by the number of units of water delivered exclusively to the particular dwelling unit for the same billing period, provided that the landlord has verified that the total amounts of water usage measured by all submeters in the building, including all submeters for common areas, does not exceed the total amount of water usage in the building for the same billing period as shown on such bill or invoice.

(h) Whenever a tenancy in a dwelling unit commences after the beginning, but before the end, of a billing period for which the landlord has not been billed by the water company, the landlord shall mail to the tenant on the first day of such tenancy the reading on the submeter for the dwelling unit as of that day. The landlord may thereafter bill the tenant only for the water measured on the submeter subsequent to such reading.

(i) Whenever a tenancy in a dwelling unit terminates after the beginning, but before the end, of a billing period for which the landlord has not been billed by the water company, the landlord shall give to the tenant on the last day of such tenancy

the reading on the submeter for the dwelling unit as of that day together with a final bill for water usage in the dwelling unit since the last prior reading of the submeter for such dwelling unit. The landlord shall charge the same rate for the water used by the tenant as the water company charged in the last bill issued to the landlord. Notwithstanding paragraph (f), the bill shall be immediately due and payable by the tenant. If the tenant does not pay the bill, the landlord may deduct the amount of the bill from any security deposit paid by the tenant in accordance with section 15B of chapter 186, prior to returning the balance of the security deposit, if any, to the tenant. If the landlord is not able to give the final reading on the submeter for the dwelling unit together with a final bill for water usage to the tenant on the last day of the tenancy, the landlord shall mail such reading and such final bill to the tenant no later than the day after the termination of the tenancy. If the water company subsequently charges the landlord a lesser rate than the landlord charged the tenant in the final bill, the landlord shall recalculate the bill forthwith based on the lesser rate and mail to the tenant the revised bill together with a rebate for any overpayment made by the tenant.

(j) A landlord shall not charge or recover, or allow to be charged or recovered, any additional servicing, administrative, establishment, meter-reading, meter-testing, billing, or submetering fee or other fee whatsoever, however denominated.

(k) Water usage separately charged to tenants pursuant to this section shall be delivered by the water company to the landlord and such landlord shall:– (1) be the consumer; (2) for billing purposes, be the customer of record; (3) be responsible for payment of the water company bills; and (4) be subject to any actions of the water company for nonpayment.

(l) In the event of nonpayment of a bill to a water company by the landlord, such water company shall have all the remedies against the customer of the water company available pursuant to any law, rule or regulation. A landlord may not shut off or refuse water service to a tenant on the basis that the tenant has not paid a separately assessed submetered water usage charge.

(m) The landlord shall retain an affirmative obligation to maintain in good working order the water supply system to each dwelling unit and any component thereof, including any water conservation device and submeter installed pursuant to this section, and to respond in a timely manner to any request by the tenant for the repair of any defect or malfunctioning in such water supply system, including any leak. Such water supply system to any dwelling unit and any component thereof including, but not limited to, any water conservation device and submeter installed pursuant to this section, shall be governed by and maintained in accordance with the state sanitary code. In the event of any overcharge by the landlord or any violation of the state sanitary code, the tenant shall have all rights

and remedies provided under law for such overcharges or such violations including, but not limited to, the rights and remedies provided under chapters 111, 186 and 239.

(n) Upon receipt of a bill for water usage from the landlord and within the time allowed for paying the bill, a tenant may request that a person or entity with expertise in the installation and operation of water submeters and with no financial or other relationship with the landlord, test the submeter for the dwelling unit leased by the tenant to determine whether it is accurately measuring the water being used in the dwelling unit. If the submeter is found to be measuring more water than is being used in the dwelling unit, the landlord shall install a new submeter at his own expense and shall also pay for the cost of the test. In addition, the person or entity conducting the test shall determine as accurately as possible the amount of water that was improperly measured by the submeter in both the prior and current billing periods. The landlord shall calculate the amount the tenant was overcharged for the prior billing period and reduce the bill by that amount, or, if the tenant has already paid the bill, give the tenant a rebate in that amount. Upon receipt from the water company of the bill for the current billing period, the landlord shall calculate the amount of the bill attributable to the excessive measurement by the submeter and reduce the bill to the tenant by that amount prior to sending it to the tenant. If the submeter is found to be measuring no more water

than is being used in the dwelling unit, the tenant shall pay for the cost of the test; provided, however, that if the tenant does not pay for the cost of the test, the landlord may add such cost to the next bill sent to the tenant and such cost shall be considered a part of the bill for purposes of paragraph (f) and clause (i) of subsection (4) of section 15B of chapter 186.

(o) In the event of a repair of a leak in the water supply system to a dwelling unit, the landlord shall determine as accurately as possible the amount of water that was measured on the submeter for the dwelling unit as a result of such leak, after a review of the billing records for the dwelling unit and consultation with the licensed plumber repairing the leak. The landlord shall then determine the amount of the bill for the billing period in which the leak occurred that was attributable to such leak and reduce the bill to the tenant by that amount or, if such bill has already been paid, grant the tenant a rebate in that amount; provided, however, that with regard to any leak about which the tenant knew or should have known, the landlord shall only be required to reduce the bill to the tenant, or to grant a rebate to the tenant, by or in an amount attributable to the water usage measured on the submeter as a result of the leak between the date the tenant gave notice to the landlord of the leak and the date the leak was repaired.

(p) A landlord may impose a charge for water use on the tenant of a dwelling unit that is connected directly to a meter installed by a water company; provided

that the meter measures only water that is supplied for the exclusive use of the dwelling unit and only to an area within the exclusive possession and control of the tenant of such dwelling unit and does not measure water usage for any portion of any common area or by any other party or dwelling unit. The landlord and tenant shall have all of the same rights and obligations with respect to water charges for such dwelling unit that landlords and tenants have under this section with respect to water charges for any dwelling unit connected to a submeter; provided, however, that the landlord shall not be required to include in the certificate required by subsection (c) the information required by clause (3) of said subsection (c) for dwelling units connected to a submeter; and provided further, that subsection (n) shall not apply to dwelling units connected directly to a meter installed by a water company. Upon a request by the tenant of a dwelling unit connected directly to a meter installed by a water company, the landlord shall apply for a test of the meter to determine its accuracy in accordance with section 10 of chapter 165. The test shall be conducted in accordance with said section 10. The tenant shall reimburse the landlord for any cost incurred in connection with such test. If the tenant does not reimburse the landlord for such cost, the landlord may add such cost to the next bill sent to the tenant and such cost shall be considered to be part of the bill for purposes of subsection (f) and clause (i) of subsection (4) of section 15B of chapter 186.

(q) Nothing in this section shall be construed to increase or expand, change, eliminate, reduce or otherwise limit the liabilities or obligations of any water company that are set forth in any law, rule, regulation or order to the tenant of a dwelling unit who is receiving water provided to the building by the water company.

(r) Nothing in this section shall affect or impair the powers and duties of the department of environmental protection or the department of public health with respect to water supply under chapter 111.

(s) No charge for water usage may be imposed on the tenant of any dwelling unit in a public housing development pursuant to chapter 200 of the acts of 1948, chapter 667 of the acts of 1954, chapter 705 of the acts of 1966, or chapter 689 of the acts of 1974.

(t) The department of public health shall promulgate such additional regulations to the state sanitary code as it determines to be necessary to implement this section.

Credits: Added by St.2004, c. 417, § 2, eff. Mar. 16, 2005.

***Cruz v. Norat-Reyes*, 17-SP-181, March 1, 2017**

Docket No.: 17-SP-181. Parties: PEDRO CRUZ, Plaintiff, v. VILMARY NORAT-REYES and SALVADOR MORENO, Defendants. Judge: /s/Robert Fields, Associate Justice. Date: March 1, 2017. Western Division.

ORDER

This matter came before the court for trial on February 2, 2017, at which the plaintiff was represented by counsel and the defendants appeared pro se. After consideration of the evidence admitted at trial and of the legal memorandum submitted by the plaintiff thereafter, the following findings of fact, rulings of law, and order for judgment shall enter:

1. Background: The plaintiff, Pedro Cruz (hereinafter, "landlord") owns a two-family house in which he rents the second floor unit of 92 Grover Street, Springfield, Massachusetts (hereinafter, "premises") to the defendants, Vilmary Norat-Reyes and Salvador Moreno (hereinafter, "tenants"). The monthly rent is $525 and the tenancy began on May 1, 2015. The tenancy was terminated "without fault" of the tenants and the tenants filed an Answer with defenses and counterclaims alleging violation of the security deposit and last month's rent laws as well as seeking additional time to move from the premises pursuant to G.L. c.239, §9.

2. The Landlord's Claim for Possession and for Outstanding Use and Occupancy: The parties stipulated to the prima facie elements of the landlord's claim for possession, agreeing to receipt of the no-fault notice to quit and also that the amount of unpaid rent, use, and occupancy through the month of trial is $1,050. What remains for the court's adjudication are the tenants' defenses and counterclaims.

3. Security Deposit and Last Month's Rent Claims: After receipt of the tenants' Answer, in which they claimed violations of the Security Deposit and Last Month's Rent laws, the landlord immediately provided checks to the tenants for the return of the security deposit plus interest and for the interest due on the last month's rent deposit. The landlord has stipulated that he violated the statute (G.L. c.186, §15B) but argues that because he returned the security deposit along with interest on both the security deposit and last month's rent, those claims are no longer before the court.

4. Discussion: The initial question before the court is whether the recent payments (noted above) made by the landlord to the tenants, and the manner in which they were made, makes the tenants whole on their asserted claims. First, treating the Answer as the first demand for the return of the security deposit and for the interest on the last month's rent, the immediate return of such funds to the tenants avoids the trebling possibilities of the statute. See, Caira v Castenholtz, 21

Mass.App.Ct. 758 (1986). Specifically, the landlord reported to the court that it paid $577.50 for the return of the security deposit and interest and $52.50 for the interest on the last month's rent. The tenants did not make argument that said sums were deficient in any manner, so the court shall assume that such payments are those that were due for the statutory violations of G.L.c.186, §15B.

4. G.L. c.239, §8A: The second question before the court is whether that portion of G.L. c.239, §8A, which allows for tenants in summary process cases—where the tenancy has been terminated "without fault" —to be awarded possession if they deposit the difference between the amount of their claim and the amount of the landlord's claim. This is important because if that statute affords this opportunity in this case, and the tenants were to timely deposit such funds with the court, the landlord would be required to commence a new summary process case for possession.

5. The relevant language of G.L. c.239, §8A states in the fifth paragraph:

If the amount found to be due the landlord exceeds the amount found to be due the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having received written notice from the court of the balance due, pays to the clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section. (Emphasis added)

6. Because there are no amounts found to be due the tenants (all such funds having been paid to them in advance of trial), this portion of the statute does not afford the tenants the right to deposit funds owed to the landlord with the court and win possession. Accordingly, possession shall be awarded to the landlord.

7. G.L. c.239, §9; Stay of Proceedings: The tenants have asserted that one of them, Mr. Moreno, has serious medical issues and the tenants request—in accordance with G.L. c.239, §9—that the court enter a stay on the judgment for possession and $1,050 plus court costs and interest that would otherwise enter at this time. A hearing shall be scheduled for March 9, 2017 at 10:00 a.m. in accordance with G.L. c.239, §9 to determine whether such a stay shall enter.

8. Next Hearing Scheduled: This matter shall be scheduled for further hearing consistent with this order on March 9, 2017 at 10:0 a.m.

/s/Robert Fields, Associate Justice

March 1, 2017

CERTIFICATE OF COMPLIANCE

I, Gabriel L. Fonseca, Esq., certify that the reply brief complies with the rules of court that pertain to the filing of briefs, including, but not limited to: Rule 16(a)(13) (addendum); Rule 16(e) (references to the record); Rule 18 (appendix to the briefs); Rule 20 (form and length of briefs, appendices, and other documents); and Rule 21 (redaction). Compliance with Rule 20 was achieved by using Times New Roman font in 14-point size. The number of non-excluded words of this brief total 2481. The word processing system used was Microsoft Word, Version 2021.

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CERTIFICATE OF SERVICE

I, Gabriel L. Fonseca, Esq., certify that on behalf of Appellant Laural Charland, I served this Appellant's Reply Brief for Appeals Court case No. 2022-P-0300, Cassandra Ferreira v. Laural Charland & Others, on Ms. Ferreira's Attorney Lawrence Farber, Esq., Farber and Lindley, LLC, 30 Boltwood Walk, Front 101, Amherst, MA 01002, via electronic service on July 6, 2022.

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CERTIFICATE OF SERVICE

I, Joshua T. Gutierrez, Esq., certify that on behalf of Appellant Laural Charland, I served this Appellant's Reply Brief for Appeals Court case No. 2022-P-0300, *Cassandra Ferreira v. Laural Charland & Others*, on Defendants Jason Charland and James Vazquez by first class mail on July 6, 2022.

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